

25VECV06915 25VECV06915

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-09-16

Motion: DEMURRER WITH MOTION TO STRIKE THE FIRST AMENDED CROSS-COMPLAINT

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Case Number: 25VECV06915 Hearing Date: September 16, 2026 Dept: I

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

COUNTY

OF LOS ANGELES

ADA BENDER,

by and through her Successor-in-Interest, STEPHEN BENDER,

Plaintiff,

vs.

JOSEPHINE CUNANAN, an individual, et al.

Defendants.

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CASE

NO: 25VECV06915

[TENTATIVE]

ORDER RE: DEMURRER WITH MOTION TO STRIKE THE FIRST AMENDED CROSS-COMPLAINT

Dept.

I

HEARING

DATE: September 16, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: December 5, 2025

TRIAL

DATE: None set

I.

BACKGROUND

This is a personal injury action arising out of the medical care and treatment of Plaintiff Ada Bender (“Decedent”), by and through her Successor-in-Interest, Stephen Bender (“Plaintiff”).

On December 5, 2025, Plaintiff filed the operative Complaint against Defendants Josephine Cunanan; Loredana Cunanan; and DOES 1 through 150 (collectively, “Defendants”), asserting causes of action for: (1) Elder Abuse/Neglect (Welfare and Institutions Code §§ 15600, et seq.); (2) Financial Elder Abuse (Welfare and Institutions Code § 15610.30); and (3) Negligence.

On March 6, 2026, Defendants Josephine Cunanan and Loredana Cunanan (hereinafter, “Cunanan Defendants”) filed a Demurrer with Motion to Strike the Complaint. The matter was fully briefed and came for hearing on April 24, 2026; the demurrer was overruled and the motion to strike was denied.

On May 12, 2026, Cunanan Defendants filed their Answer to the Complaint and Cross-Complaint against Plaintiff; Stephen Bender, an individual; Joel Bender, an individual; and DOES 1 through 20, asserting causes of action for: (1) Negligence; (2) Equitable Indemnity; (3) Contribution; (4) Apportionment of Fault; and (5) Declaratory Relief.

On June 4, 2026, Cunanan Defendants filed the operative First Amended Cross-Complaint (“FACC”) against Stephen Bender, an individual; Joel Bender, an individual; and ROES 1 through 20 (collectively, “Cross-Defendants”), asserting causes of action for: (1) Negligence; (2) Equitable Indemnity; (3) Contribution; (4) Common Counts; and (5) Declaratory Relief.

On July 6, 2026, Cross-Defendants Stephen Bender and Joel Bender (jointly, “Bender Cross-Defendants”) filed the instant Demurrer with Motion to Strike the Cross-Complaint. On July 13, 2026, Cunanan Defendants (hereinafter, “Cross-Complainants”) filed an Opposition. On September 8, 2026, Bender Cross-Defendants filed a Reply.

II.

LEGAL

STANDARD

Demurrer

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primary function of a pleading is to give the other party notice so that it may prepare its case [citation], and a defect in a pleading that otherwise properly notifies a party cannot be said to affect substantial rights.” (Harris v. City of Santa Monica (2013) 56 Cal.4th 203, 240.)

“A demurrer tests

the legal sufficiency of the factual allegations in a complaint.” (Ivanoff v. Bank of America, N.A. (2017) 9 Cal.App.5th 719, 725.) The Court looks to whether “the complaint alleges facts sufficient to state a cause of action or discloses a complete defense.” (Id.) The Court does not “read passages from a complaint in isolation; in reviewing a ruling on a demurrer, we read the complaint ‘as a whole and its parts in their context.’ [Citation.]” (West v. JPMorgan Chase Bank, N.A. (2013) 214 Cal.App.4th 780, 804.) The Court “assume[s] the truth of the properly pleaded factual allegations, facts that reasonably can be inferred from those expressly pleaded and matters of which judicial notice has been taken.” (Harris, supra, 56 Cal.4th p. 240.)

“The court does not, however, assume the truth of contentions, deductions, or conclusions of law. [Citation.]” (Durell v. Sharp Healthcare (2010) 183 Cal.App.4th 1350, 1358.)

A

general demurrer may be brought under Code of Civil Procedure section 430.10, subdivision (e) if insufficient facts are stated to support the cause of action asserted or under section 430.10, subdivision (a), where the court has no jurisdiction of the subject of the cause of action alleged in the pleading. All other grounds listed in Section 430.10, including uncertainty under subdivision (f), are special demurrers. Special demurrers are not allowed in limited jurisdiction courts. (Code Civ. Proc., § 92, subd. (c).)

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demurrer for uncertainty means the pleading is ambiguous or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.) “[D]emurrers for uncertainty are disfavored and are granted only if the pleading is so

incomprehensible that a defendant cannot reasonably respond.” (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695.)

Leave

to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Id.)

Motion to Strike

“Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof, but this time limitation shall not apply to motions specified in subdivision (e).” (Code Civ. Proc., § 435, subd. (b)(1).)¿¿

“The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.” (Code Civ. Proc., § 436, subd. (a); see also Stafford v. Shultz (1954) 42 Cal.2d 767, 782 [“Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded”.].)¿

The court may also strike all or any part of any pleading not drawn or filed in conformity with California law, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) An immaterial or irrelevant allegation is one that is not essential to the statement of a claim or defense; is neither pertinent to nor supported by an otherwise sufficient claim or defense; or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)¿¿

III.

DISCUSSION

Meet and Confer

Prior to filing a demurrer and motion to

strike, the demurring/moving party is required to meet and confer in person, by telephone, or by videoconference with the party who filed the pleading for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer and motion to strike. (Code Civ. Proc., § 430.41; Code Civ. Proc., § 435.5.)

Bender

Cross-Defendants' counsel of record, James E. Yee, attests to the following meet and confer efforts: "On June 23, 2026, counsel for the parties hereto participated in a telephonic meet and confer to address those issues outlined in the aforementioned June 5, 2026 letter." (Yee Dem. Decl., ¶3; Yee MTS Decl., ¶4.) The parties were unable to resolve the disputes set forth in the demurrer and motion to strike. (Yee Dem. Decl., ¶4; Yee MTS Decl., ¶5.) Thus, the Court finds that Bender Cross-Defendants have fulfilled their meet and confer obligation.

Demurrer

Bender

Cross-Defendants demur to all five causes of action on the grounds that the FACC fails to state sufficient facts to constitute causes of action against them.

First

Cause of Action for Negligence

Specifically,

Bender Cross-Defendants argue that the negligence claim fails because no California authority recognizes a duty of care owed by family members managing an elderly relatives' affairs to third-party caregivers and no cognizable tort damages are alleged.

"To state a cause of action for negligence, a plaintiff must allege (1) the defendant owed the plaintiff a duty of care, (2) the defendant breached that duty, and (3) the breach proximately caused the plaintiff's damages or injuries." (Lueras v. BAC Home Loans Servicing, LP (2013) 221 Cal.App.4th 49, 62.) "[W]hether an individual owes a duty of care to another is a question of law." (Portillo v. Aiassa (1994) 27 Cal.App.4th 1128, 1133.)

In

determining liability, the courts consider the Rowland factors: “the foreseeability of harm to the plaintiff, the degree of certainty that the plaintiff suffered injury, the closeness of the connection between the defendant’s conduct and the injury suffered, the moral blame attached to the defendant’s conduct, the policy of preventing future harm, the extent of the burden to the defendant and consequences to the community of imposing a duty to exercise care with resulting liability for breach, and the availability, cost, and prevalence of insurance for the risk involved.” (Rowland v. Christian (1968) 69 Cal.2d 108, 113.)

Under the negligent/voluntary undertaking doctrine, a party is liable to a third-party if: “(1) the actor (in this case, Dow Chemical) undertook, gratuitously or for consideration, to render services to another (Dow Corning); (2) the services rendered were of a kind the actor should have recognized as necessary for the protection of third persons (plaintiffs); (3) the actor failed to exercise reasonable care in the performance of its undertaking; (4) the failure to exercise reasonable care resulted in physical harm to the third persons; and (5) either (a) the actor’s carelessness increased the risk of such harm, or (b) the undertaking was to perform a duty owed by the other to the third persons, or (c) the harm was suffered because of the reliance of the other or the third persons upon the undertaking.” (Artiglio v. Corning Inc. (1998) 18 Cal.4th 604, 613–614; see also Paz v. State of California (2000) 22 Cal.4th 550, 559.)

The FACC alleges, inter alia, that Bender Cross-Defendants exercised authority, control, or decision-making power over Decedent’s finances, medical appointment, medical providers, supplies, equipment, household needs, authorization of care-related expenses, and payments to or reimbursement of Cross-Complainants. (FACC, ¶¶22, 38.) Cross-Defendant Stephen Bender was the primary point-of-contact for day-to-day issues involving Decedent’s care. (Id., ¶¶23, 39.) Cross-Defendant Joel Bender also participated in decisions concerning Decedent’s care and was informed of Decedent’s condition, needs, physical decline, and requests made by Cross-Complainants. (Id., ¶¶24, 40-41.) By voluntarily assuming exclusive control over Decedent’s care, selection of medical providers, and authorization or denial of care-related expenses, Bender Cross-Defendants owed an independent duty to Cross-Complainants to exercise reasonable care in their management of Decedent’s care environment and avoid affirmative acts or omissions that foreseeably created, increased, or contributed to an

unreasonable risk of legal and financial liability for Cross-Complainants. (Id., ¶42.) Cross-Complainants repeatedly advised Bender Cross-Defendants that Decedent required additional professional evaluation, medical oversight, written medical guidance, equipment, and supplies. (Id., ¶¶25, 47.) Bender Cross-Defendants failed to timely (1) arrange routine physician visits, home-health assessments, wound-care evaluations, or other professional medical oversight reasonably necessary under the circumstances; (2) authorize or provide necessary equipment; and (3) authorize or provide necessary supplies, care-related expenses, household necessities. (Id., ¶¶26-27, 43-45.) Cross-Defendant Stephen Bender with the knowledge and ratification of Cross-Defendant Joel Bender, affirmatively interfered with medical care by ordering unauthorized “every other day” wound cleaning schedule, as well as pressured and demanded Cross-Complainants administer heavy narcotics to Decedent outside of licensed physician updated orders. (Id., ¶¶28-29, 46.)

Taking these allegations as true, the FACC fails to sufficiently allege a negligence claim against Bender Cross-Defendants under the negligent undertaking doctrine. Although the FACC alleges that Bender Cross-Defendants assumed exclusive control over medical care, finances, supplies, and authorization or denial of care-related expenses for Decedent, the FACC is devoid of any facts showing that Bender Cross-Defendants in their individual capacities, hired, supervised, and/or directed Cross-Complainants’ performance in providing Decedent caregiving services such that Bender Cross-Defendants undertook services necessary for the protection of Cross-Complainants. Notably, the FACC entirely omits who hired, supervised, and/or had oversight over Cross-Complainants’ caregiving service. Even assuming *arguendo* that Cross-Complainants’ sufficiently plead negligent undertaking, they fail to sufficiently allege a basis for attorneys’ fees, which are not recoverable for tort damages but only via statute or by contract.

To the extent that Cross-Complainants argue that they plead this cause of action for injuries or damages allegedly suffered by Decedent in the alternative (See FACC, ¶51; Opp. at 4:16-20), they have not shown they have standing to bring any cross-claims on behalf of Decedent. (See *Crowley v. Katleman* (1994) 8 Cal. 4th 666, 691 [a party may plead inconsistent facts or theories]; cf. *Smith v. Cimmet* (2011) 199 Cal.App.4th 1381, 1390 [“A party initiating a lawsuit must have both capacity to sue (the right to come into court) and standing to sue (the right to state a cause of action seeking

particular relief).”.)

Accordingly, the demurrer to the first cause of action is
SUSTAINED with leave to amend.

Second

Cause of Action for Equitable Indemnity

Next,

Bender Cross-Defendants contend that the equitable indemnity claim fails
because the FACC fails to state sufficient facts for indemnity and it is
duplicative of the contribution claim.

“Equitable

indemnity, which ‘requires no contractual relationship,’ ‘is premised
on a joint legal obligation to another for damages’; it is ‘subject
to allocation of fault principles and comparative equitable apportionment of
loss.’ ” (C.W. Howe Partners Inc. v. Mooradian (2019) 43
Cal.App.5th 688, 700.) “ ‘The elements of a cause of action for
[equitable] indemnity are (1) a showing of fault on the part of the indemnitor
and (2) resulting damages to the indemnitee for which the indemnitor is ...
equitably responsible.’ ” (Id.)

Essentially,

Bender Cross-Defendants’ must have undertaken a affirmative custodial duty in
the care of Decedent to give rise to a joint legal obligation with
Cross-Complainants. This can arise from:

(1) the family acting under a valid power of attorney; (2) assuming custodial
or caretaking responsibilities as described under the Elder Abuse and Dependent
Adult Civil Protection Act; or (3) under the common law confidential
relationship doctrine when the family member actually dominates and controls
another. (See Gomez v. Smith (2020) 54 Cal.App.5th 1016, 1035 [“An
attorney-in-fact under a power of attorney is a fiduciary and thus owes
fiduciary duties to his or her principal.”]; Winn v. Pioneer Medical Group,
Inc. (2016) 63 Cal.4th 148, 160 [“[N]eglect requires a caretaking or
custodial relationship that arises where an elder or dependent adult depends on
another for the provision of some or all of his or her fundamental needs.”]; Peters
v. Papoulacos (1963) 218 Cal.App.2d 791, 794 [“[T]he solitary fact of
family relationship will not of itself alone establish the existence of a
fiduciary or confidential relation raising a presumption of undue influence.

Whether or not such a relation exists between members of the same family depends on all the facts and circumstances of the case, and unless one party actually dominates the other so that the other depends on him for advice and guidance a confidential relation does not exist, even though the parties are closely related by family ties.”].)

The FACC

alleges that Cross-Complainants were the Decedent's private caregivers during the relevant time period. (FACC, ¶¶3, 20.) The FACC does not allege that Bender Cross-Defendants were managing the Decedent's finances pursuant to a valid power of attorney (“POA”). (Id., ¶¶22-24, 38-41.) As discussed above, the FACC is devoid of any allegations that Bender Cross-Defendants hired, supervised, and/or had oversight over Cross-Complainants caregiving services rendered to the Decedent. In fact, the FACC merely alleges that Bender Cross-Defendants owed an independent, nondelegable legal obligation to Decedent to refrain from neglecting her medical and safety needs. (FACC, ¶¶58, 60.) To the contrary, being the Decedent's sons is not enough to give rise to the same an affirmative custodial duty that Cross-Complainants are alleged to have undertaken.

Accordingly,

the demurrer to the second cause of action is SUSTAINED with leave to amend.

Third

Cause of Action for Contribution

Similarly,

Bender Cross-Defendants contend that the contribution claim fails because the FACC fails to state sufficient facts to support such claim and it is duplicative of the equitable indemnity claim.

Equitable

contribution is “the right to recover, not from the party primarily liable for the loss, but from a co-obligor who shares such liability with the party seeking contribution.” (American States Ins. Co. v. National Fire Ins. Co. of Hartford (2011) 202 Cal.App.4th 692, 701.) Statutory contribution under Code of Civil Procedure Section 875, can only be sought “after rendition of a judgment declaring more than one defendant jointly liable to a plaintiff.” (Coca-Cola Bottling Co. v. Lucky Stores, Inc. (1992) 11 Cal.App.4th 1372.)

To the

extent that Bender Cross-Defendants argue that this claim fails because no judgment has been rendered (Dem. at 8:5-19; Reply at 7:14-19), the FACC does not specify whether Cross-Complainants' seek statutory contribution or equitable contribution. Thus, whether judgment has been rendered is irrelevant at this time. Nonetheless, the FACC alleges, inter alia, that if Cross-Complainants are found liable to Plaintiff for any injury, damage, neglect, etc., then Bender Cross-Defendants are joint tortfeasors, concurrent tortfeasors, or otherwise legally responsible persons whose conduct caused or contributed to the same alleged harm. (FACC, ¶¶66-70.) As mentioned above, the FACC fails to allege any facts showing that Bender Cross-defendants shared a joint legal obligation to provide caregiver or custodial care to the Decedent.

Accordingly,

the demurrer to the third cause of action is SUSTAINED with leave to amend.

Fourth

Cause of Action for Common Counts

Additionally,

Bender Cross-Defendants assert that they have no personal obligation to reimburse Cross-Complainants.

"The essential allegations of a common count 'are (1) the statement of indebtedness in a certain sum, (2) the consideration, i.e., goods sold, work done, etc., and (3) nonpayment.' " (Allen v. Powell (1967) 248 Cal.App.2d 502, 510.)

The

FACC alleges, inter alia, that Cross-Complainants advanced money, paid expenses, furnished goods, provided supplies, and/or incurred care-related costs for the use and benefit of Decedent, Bender Cross-Defendants, and/or their authorized representatives including but not limited to: groceries, household necessities, medical supplies, care-related items, utilities, air-quality items, and other expenses reasonably related to the care and household of the Decedent. (FACC, ¶¶72-73.) Bender Cross-Defendants accepted, retained, requested, ratified, or benefited from those payments, goods, supplies, and expenditures becoming indebted to Cross-Complainants. (Id., ¶¶74-75.) Bender Cross-Defendants refused to pay the full amount owed. (Id.,

¶76.)

Taking these allegations as true, the FACC does not allege that Cross-Complainants sold and delivered any goods or services to Bender Cross-Defendants. (See *Abadie v. Carrillo* (1867) 32 Cal. 172, 175 [“Our predecessors frequently held that the ordinary forms of counts is indebitatus assumpsit, for goods sold and delivered, etc., were sufficient.”].)

Furthermore, the FACC does not allege that Cross-Complainants and Bender Cross-Defendants had financial transactions kept on an account. (See *State Compensation Insurance Fund v. ReadyLink Healthcare, Inc.* (2020) 50 Cal.App.5th 422, 449 [elements of cause of action for open book account].)

Moreover, the FACC fails to allege any facts to support the parties had an express or implied agreement that Bender Cross-Defendants would reimburse Cross-Complainants for the purported money advanced, expenses paid, furnished goods, and/or supplies provided to the Decedent. (See *Leighton v. Forster* (2017) 8 Cal.App.5th 467, 491 [elements of cause of action for account stated].) Likewise, the FACC does not allege that the purported money Bender Cross-Defendants received were intended to be used for the benefit of Cross-Complainants. (See *Camden Systems, LLC v. 409 North Camden, LLC* (2024) 103 Cal.App.5th 1068, 1082 [elements of cause of action for money had and received].) Nevertheless, the FACC appears to allege that Bender Cross-Defendants requested those payments, goods, supplies, and/or expenditures from Cross-Complainants. (*Id.*, ¶74.) The FACC also alleges such services were conferred for the benefit of Bender Cross-Defendants. (*Id.*, ¶72.) This satisfies the elements of the common count for quantum meruit. (See *Port Medical Wellness, Inc. v. Connecticut General Life Insurance Company* (2018) 24 Cal.App.5th 153, 180.)

Fifth

Cause of Action for Declaratory Relief

Finally,

Bender Cross-Defendants assert that the declaratory relief claim is duplicative of all the other causes of action. Cross-Complainants concede that this cause of action is based upon the second through fourth causes of action. (Opp. at 8:3-7; FACC ¶¶80-87.)

Pursuant to the

Code of Civil Procedure section 1060, “any person interested under a written instrument, excluding a will or a trust, or under a contract, or who desires a

declaration of his or her rights or duties with respect to another, or in respect to, in, over or upon property, or with respect to the location of the natural channel of a watercourse, may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court for a declaration of his or her rights and duties in the premises, including a determination of any question of construction or validity arising under the instrument or contract. He or she may ask for a declaration of rights or duties, either alone or with other relief; and the court may make a binding declaration of these rights or duties, whether or not further relief is or could be claimed at the time. The declaration may be either affirmative or negative in form and effect, and the declaration shall have the force of a final judgment. The declaration may be had before there has been any breach of the obligation in respect to which said declaration is sought." (Code Civ. Proc., § 1060.)

"To qualify for declaratory relief under section 1060, an action must present two essential elements: (1) a proper subject of declaratory relief and (2) an actual controversy involving justiciable questions relating to the rights or obligations of a party." (Lee v. Silveira (2016) 6 Cal.App.5th 527, 546.)

Although the second and third causes of action have been sustained with leave to amend, the demurrer to the fourth cause of action has been overruled. To the extent that the declaratory relief claim is also based upon the fourth cause of action, the demurrer to the fifth cause of action is SUSTAINED with leave to amend for the limited purpose of pleading facts to support the second and third causes of action.

Motion
to Strike

Bender

Cross-Defendants move for an order striking references to attorney's fees, litigation costs and expenses; and request for declaration of fault and allocation of defense costs in the FACC on the grounds that they are improper.

Here, the

Court notes that the paragraphs and prayer for relief Bender Cross-Defendants seek to strike have been addressed by the demurrer ruling.

Accordingly, the motion to strike is DENIED
as moot.

IV.

CONCLUSION

Based on the foregoing, Cross-Defendants
Stephen Bender and Joel Bender's Demurrer to the First Amended Cross-Complaint
is SUSTAINED with 30 days leave to amend as to the first, second, third, and
fifth causes of action, and OVERRULED as to the fourth cause of action.

Cross-Defendants Stephen Bender and
Joel Bender's Motion to Strike the First Amended Cross-Complaint is DENIED as moot.

Cross-Defendants Stephen Bender and Joel Bender to
give notice.

Dated: September
16, 2026

Hon. Karen Moskowitz

Judge
of the Superior Court